Article 24 (Education): Possible Concerns

For the NGO parallel report on Armenia, read with Articles 2 and 5 CRPD

Sources: State report = *Combined second and third periodic reports of Armenia*, CRPD/C/ARM/2-3 (2024). 2017 CO = *Concluding observations on the initial report of Armenia*, CRPD/C/ARM/CO/1 (2017). Paragraph numbers refer to these documents.

How to use: pick the strongest concerns and merge related ones (see the end). Check every paragraph against the documents. Add exact paragraphs from General Comment No. 4 (education) and No. 6 (equality) once you have them. Do not invent figures: where data are missing, say so.

1. Segregated special schools persist

2017 CO	Concern that many children remain in segregated settings (para 41); inclusive system at all levels by 2025 (para 42(a)); concern about residential special schools (para 11(a)).
State report	Special schools reduced from 23 to 9 by January 2020, but "at least 6" will remain (para 257); a special system "operates alongside" mainstream schools (para 248).
Gap	The State plans to keep a parallel segregated system, not to end it.
Legal basis	Art. 24(1) and (2)(a); General Comment No. 4 (parallel systems incompatible with inclusion); Art. 5 and General Comment No. 6 (segregation as discrimination).
Possible question	What is the timeline for closing the remaining special schools and transferring their resources to mainstream schools?

2. Parental "choice" of special schools

2017 CO	Not addressed directly; linked to para 41 (segregation).
State report	Education may be provided "upon the choice of parents" in mainstream or special institutions (para 248).
Gap	The law itself keeps segregation as an option.
Legal basis	Art. 24 is the child's right to inclusive education; Art. 7(2)-(3) (best interests and views of the child).
Possible question	How does the State ensure that parental choice does not result in segregation of the child?

3. Boarding and residential special schools

2017 CO	Concern about institutionalisation of children in "residential special schools" and continued investment in them (para 11(a)); deinstitutionalisation recommended (para 12(a)).
State report	Special schools "may be boarding schools" (para 251). Deinstitutionalisation measures are described for care institutions (paras 103-104), but not for boarding special schools.
Gap	No plan to end boarding special schools; children are separated from families.
Legal basis	Arts 24, 7, 19 and 23; best used as part of concern 1.
Possible question	How many children with disabilities currently attend boarding special schools, and what is the plan to end this?

4. Reasonable accommodation not legally guaranteed

2017 CO	Reasonable accommodation and its denial as discrimination missing from anti-discrimination law (para 7(b)); include it (para 8(b)); lack of reasonable accommodation in mainstream schools (para 41); resources for it (para 42(b)).
State report	In education, reasonable accommodation is mentioned only for preschool (para 262). Its denial as discrimination appears only in draft laws (paras 30-34).
Gap	Still no adopted law guaranteeing reasonable accommodation in education at all levels, so no remedy when it is refused.
Legal basis	Arts 2 and 5(3) (denial of reasonable accommodation = discrimination); Art. 24(2)(c); General Comment No. 6.
Possible question	Have the draft laws been adopted? Does legislation guarantee reasonable accommodation at all levels of education, with effective remedies?

5. Accessibility only "envisaged"

2017 CO	Lack of accessibility in mainstream schools (para 41); ensure accessibility (para 42(b)).
State report	Ramps and equipment are "envisaged"; USAID renovation of 100 schools "by April 2021" (para 263); criteria "taken into consideration" (para 264); higher education accessibility "until 2021" (para 268).
Gap	Plans, not results; no information on what was actually completed.
Legal basis	Art. 9 with Art. 24; 2017 CO para 42(b).
Possible question	How many schools are fully accessible today, and was the programme completed?

6. Implementation deadline and outdated information

2017 CO	Welcomed the transition to inclusive education "by 2025" (para 4(a)); recommended inclusion at all levels by 2025 (para 42(a)).
State report	Full introduction "by 2022" (para 256), but figures stop in 2020 (paras 257, 259). The report was received in September 2020.
Gap	No information on whether the 2022 target was met or on the current situation.
Legal basis	Art. 24; Art. 35 (reporting obligation); 2017 CO para 42(a).
Possible question	Was the universal inclusive education system fully introduced by 2022? Please provide updated information.

7. Teacher training not mandatory

2017 CO	Insufficient support and training for staff (para 41); make training mandatory (para 42(c)).
State report	Training courses held in 2018-2019 and planned for 2020-2022 (paras 260, 272).
Gap	Nothing says training is mandatory, which was the specific recommendation.
Legal basis	Art. 24(4); 2017 CO para 42(c).
Possible question	Is training on inclusive education mandatory for all teaching and administrative staff?

8. Medical-model language and assessment

2017 CO	Not addressed directly.
State report	"Children in need of special conditions for education", "peculiarities of development" (para 247); intellectual disability grouped with "anti-social behaviour" (para 251); new standards for "assessing the need" (para 258).
Gap	A deficit/medical approach rather than the human-rights model.
Legal basis	General Comment No. 6 (human-rights model of disability); Art. 1.
Possible question	How do assessment procedures reflect the human-rights model rather than a medical one?

9. Higher and vocational education

2017 CO	Inclusive education at all levels, including tertiary (para 42(a)-(b)).
State report	Free higher education only for 1st and 2nd disability groups, and only with "transitional points" (para 267); universities covered by one vague sentence (para 271); one 2016-2017 vocational project (para 265).
Gap	Access depends on a medical classification; little information on tertiary education.
Legal basis	Art. 24(5) (tertiary education on an equal basis, with reasonable accommodation); Art. 5.
Possible question	What measures ensure access to higher and vocational education for all persons with disabilities, regardless of disability group?

10. Sign language and Braille in education

2017 CO	Braille "restricted to specialized, segregated settings" (para 35(b)); sign language not recognised as an official language (para 35(c)).
State report	The Law "On Language" provides that education of persons with hearing impairments is in Armenian sign language (para 232); the education section mentions only "Braille notebooks" (para 261).
Gap	No information on sign language and Braille in mainstream schools; the risk that these remain tied to segregated settings.
Legal basis	Art. 24(3)(b)-(c) (sign language, linguistic identity of the deaf community, Braille).
Possible question	How are sign language and Braille provided in mainstream schools, and how many teachers are qualified in them?

11. Rural and intersectional inequality, and missing data

2017 CO	No strategy for urban and rural areas (para 41); multiple and intersecting discrimination not prohibited (paras 7(a), 8(a)); women and girls (para 9); lack of disaggregated data (paras 55-56).
State report	17 support centres "in different marzes" (para 258); a system collects disaggregated data (para 329), but the education section gives no data by sex, region or setting.
Gap	No way to assess equal access for girls, rural children or children in institutions.
Legal basis	Arts 5, 6 and 7; General Comment No. 6 (intersectional discrimination); Art. 31 (data).
Possible question	Please provide data on children with disabilities in mainstream, special and boarding schools, disaggregated by sex, age, impairment and urban/rural residence.

Suggested grouping into 4 strong concerns

A. Segregation: concerns 1 + 2 + 3

B. Reasonable accommodation: concern 4 (most clearly linked to Arts 2 and 5)

C. Implementation gap: concerns 5 + 6 + 7

D. Intersectional inequality and data: concern 11

Alternatives: concerns 8, 9 and 10, if your partner's list overlaps with yours.